

SOLVED PRACTICE WORKBOOK

Making of the Constitution - Learner-v2 Refreshed

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing



Original deterministic study visual; labels are explanatory, not textual quotations.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

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Major learning parts and meaningful subtopics are listed in document order. Page numbers are generated from the final PDF layout; PDF bookmarks mirror the same hierarchy.

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Making of the Constitution - Learner-v2 Source-Complete Learning Session

BASIC MCQS / REMEDIATION

Practice design and rotation

- 40 core questions cover demand evolution, composition, people, committees, drafting, Articles 393-395, criticism, symbols and interpretation.
- Eight remedials target the highest-risk confusions.
- Correct options continue strictly A -> B -> C -> D across all 48 questions.

Core MCQs 01-08

Core MCQ 01

The idea of a Constituent Assembly was first put forward in 1934 by:

- A. Rajendra Prasad
- B. B.R. Ambedkar
- C. Jawaharlal Nehru
- D. M.N. Roy

Answer: D. M.N. Roy.

Explanation: Roy first proposed the institutional idea; Congress officially demanded it in 1935.

Core MCQ 02

Which statement best describes provincial representation under the Cabinet Mission scheme?

- A. Election by the central legislature
- B. Election by community members of provincial assemblies through PR-STV
- C. Nomination by Governors
- D. Direct universal election

Answer: B. Election by community members of provincial assemblies through PR-STV.

Explanation: The election was indirect and organised through community members in provincial legislatures.

Core MCQ 03

Which figure denotes post-Partition sanctioned strength?

- A. 299
- B. 211
- C. 284
- D. 389

Answer: A. 299.

Explanation: 299 was the post-Partition strength: 229 provincial plus 70 princely-state seats.

Core MCQ 04

Who was the Constitutional Adviser to the Assembly?

- A. B.R. Ambedkar
- B. B.N. Rau
- C. S.N. Mukerjee
- D. H.V.R. Iyengar

Answer: B. B.N. Rau.

Explanation: Rau prepared comparative advice and an initial adviser draft; he did not chair the Drafting Committee.

Core MCQ 05

The Objectives Resolution was adopted on:

- A. 29 August 1947
- B. 13 December 1946
- C. 26 November 1949
- D. 22 January 1947

Answer: D. 22 January 1947.

Explanation: Nehru moved it on 13 December 1946; the Assembly adopted it on 22 January 1947.

Core MCQ 06

The parent Advisory Committee on Fundamental Rights, Minorities and Tribal Areas was chaired by:

- A. Vallabhbhai Patel
- B. H.C. Mukherjee
- C. Gopinath Bardoloi
- D. J.B. Kripalani

Answer: A. Vallabhbhai Patel.

Explanation: Patel chaired the parent committee; specialised subcommittees had different chairs.

Core MCQ 07

Which is the correct institutional sequence?

- A. Committee reports and Rau advice -> Drafting Committee -> Assembly
- B. Drafting Committee -> Rau -> Assembly
- C. Assembly -> Rau -> committees
- D. Rau -> adoption -> Drafting Committee

Answer: A. Committee reports and Rau advice -> Drafting Committee -> Assembly.

Explanation: Research and reports fed drafting; the Assembly debated, amended and adopted.

Core MCQ 08

Which event occurred on 24 January 1950?

- A. Adoption
- B. Signing by 284 members
- C. Drafting Committee appointment
- D. General commencement

Answer: B. Signing by 284 members.

Explanation: Signing followed adoption and preceded general commencement.

Core MCQs 09-16

Core MCQ 09

Which is the safest statement about borrowed provisions?

- A. The 1935 Act was copied without transformation
- B. They prove the text lacked originality
- C. Every feature has one exclusive foreign source
- D. They were selected and adapted to Indian conditions

Answer: D. They were selected and adapted to Indian conditions.

Explanation: The analytical issue is adaptation and integration, not foreign origin alone.

Core MCQ 10

Which mechanism most directly made disagreement manageable before plenary adoption?

- A. Judicial review
- B. Committee specialisation and negotiation
- C. Direct referendum
- D. Royal assent

Answer: B. Committee specialisation and negotiation.

Explanation: Committees narrowed and framed disputes, while plenary debate retained final authority.

Core MCQ 11

Which member is correctly linked to opposition to separate electorates?

- A. Rajkumari Amrit Kaur
- B. Hansa Mehta
- C. Dakshayani Velayudhan
- D. Begum Aizaz Rasul

Answer: D. Begum Aizaz Rasul.

Explanation: Begum Aizaz Rasul opposed separate electorates while participating as a Muslim woman member.

Core MCQ 12

Which is NOT a valid defence of the Assembly's representative character?

- A. Its debates recorded disagreement
- B. It created universal adult franchise
- C. It was directly elected by all adults
- D. Its social range exceeded its electoral base

Answer: C. It was directly elected by all adults.

Explanation: The Assembly was indirectly elected and partly nominated, not directly elected on adult franchise.

Core MCQ 13

The Drafting Committee was appointed on:

- A. 9 December 1946
- B. 29 August 1947
- C. 15 November 1948
- D. 26 November 1949

Answer: B. 29 August 1947.

Explanation: The seven-member committee was appointed on 29 August 1947.

Core MCQ 14

Article 394 principally concerns:

- A. Repeals
- B. Commencement
- C. Short title
- D. Authoritative Hindi text

Answer: B. Commencement.

Explanation: Article 393 is short title, Article 394 commencement and Article 395 repeals.

Core MCQ 15

The original adopted Constitution contained:

- A. 395 Articles and 12 Schedules
- B. 389 Articles and 8 Schedules
- C. 395 Articles and 8 Schedules
- D. 299 Articles and 8 Schedules

Answer: C. 395 Articles and 8 Schedules.

Explanation: The original adopted text had a Preamble, 395 Articles and 8 Schedules.

Core MCQ 16

Which is the best legitimacy verdict?

- A. Perfectly representative by modern standards
- B. Electorally limited but deliberatively and prospectively democratising
- C. Legitimate only because Congress won
- D. Illegitimate solely because it was indirect

Answer: B. Electorally limited but deliberatively and prospectively democratising.

Explanation: A graded verdict recognises the electoral deficit and the democratic constitutional output.

Core MCQs 17-24

Core MCQ 17

Which British initiative first accepted the constitution-making principle in broad terms?

- A. Cripps proposals, 1942
- B. Indian Independence Act, 1947
- C. Cabinet Mission, 1946
- D. August Offer, 1940

Answer: D. August Offer, 1940.

Explanation: The August Offer accepted the principle; the Cabinet Mission later supplied the operative scheme.

Core MCQ 18

How many seats were allocated to British India in the planned Assembly?

- A. 296
- B. 299
- C. 389
- D. 292

Answer: A. 296.

Explanation: British India received 296 seats: 292 Governors' provinces and 4 Chief Commissioners' provinces.

Core MCQ 19

After Partition, how many seats were allocated to princely states?

- A. 70 provincial seats
- B. 70
- C. 93
- D. 229

Answer: B. 70.

Explanation: The 299 total comprised 229 provincial and 70 princely-state seats.

Core MCQ 20

Who presided when the Assembly functioned as the Dominion legislature?

- A. Rajendra Prasad

- B. H.C. Mukherjee
- C. Sachchidananda Sinha
- D. G.V. Mavlankar

Answer: D. G.V. Mavlankar.

Explanation: Rajendra Prasad presided in constituent business; Mavlankar presided in legislative business.

Core MCQ 21

On which date did Nehru introduce the Objectives Resolution?

- A. 26 November 1949
- B. 9 December 1946
- C. 13 December 1946
- D. 22 January 1947

Answer: C. 13 December 1946.

Explanation: It was introduced on 13 December 1946 and adopted on 22 January 1947.

Core MCQ 22

What was the central constitutional effect of the Indian Independence Act 1947 on the Assembly?

- A. It introduced direct adult-franchise elections
- B. It restored Westminster's veto
- C. It made the Assembly fully sovereign in constituent and legislative fields
- D. It dissolved the Assembly

Answer: C. It made the Assembly fully sovereign in constituent and legislative fields.

Explanation: The Act removed external legal subordination; it did not cure every representative limitation.

Core MCQ 23

Who chaired the North-East Frontier (Assam) Tribal and Excluded Areas Sub-Committee?

- A. J.B. Kripalani
- B. A.V. Thakkar
- C. H.C. Mukherjee
- D. Gopinath Bardoloi

Answer: D. Gopinath Bardoloi.

Explanation: Bardoloi chaired the Assam-area subcommittee; Thakkar chaired the corresponding body for areas outside Assam.

Core MCQ 24

Who replaced D.P. Khaitan on the Drafting Committee after Khaitan's death?

- A. T.T. Krishnamachari
- B. H.V.R. Iyengar
- C. B.L. Mitter
- D. N. Madhava Rau

Answer: A. T.T. Krishnamachari.

Explanation: T.T. Krishnamachari replaced Khaitan; N. Madhava Rau replaced B.L. Mitter.

Core MCQs 25-32

Core MCQ 25

When was the first Draft Constitution published for public consideration?

- A. January 1950
- B. October 1948
- C. February 1948
- D. November 1948

Answer: C. February 1948.

Explanation: The first published Draft appeared in February 1948; a revised Draft followed in October 1948.

Core MCQ 26

The clause-by-clause second reading began on:

- A. 14 November 1949
- B. 4 November 1948
- C. 15 November 1948
- D. 17 October 1949

Answer: C. 15 November 1948.

Explanation: The second reading ran from 15 November 1948 to 17 October 1949.

Core MCQ 27

How many amendments were proposed in the commonly cited Assembly account?

- A. 7,653
- B. 114
- C. 2,473
- D. 395

Answer: A. 7,653.

Explanation: 7,653 were proposed; 2,473 were moved or disposed in the commonly cited account.

Core MCQ 28

Which statement about Article 395 is correct?

- A. It repealed the Abolition of Privy Council Jurisdiction Act 1949
- B. It repealed every pre-1950 enactment
- C. It repealed only the Government of India Act 1935
- D. It repealed the Indian Independence Act 1947 and the Government of India Act 1935 with the stated related enactments

Answer: D. It repealed the Indian Independence Act 1947 and the Government of India Act 1935 with the stated related enactments.

Explanation: The Privy Council abolition law continued; Article 395's repeal must be stated exactly.

Core MCQ 29

What was the Assembly's seal or symbol?

- A. Elephant
- B. Lion Capital
- C. Spinning wheel
- D. Lotus

Answer: A. Elephant.

Explanation: The elephant was the Assembly's symbol; the Lion Capital became the State Emblem later.

Core MCQ 30

Who calligraphed the English Constitution?

- A. Prem Behari Narain Raizada
- B. Beohar Rammanohar Sinha
- C. S.N. Mukerjee
- D. Nandalal Bose

Answer: A. Prem Behari Narain Raizada.

Explanation: Raizada calligraphed the English text; Bose led the artwork.

Core MCQ 31

Who led the artistic decoration of the original Constitution at Shantiniketan?

- A. H.V.R. Iyengar
- B. Prem Behari Narain Raizada
- C. Nandalal Bose
- D. B.N. Rau

Answer: C. Nandalal Bose.

Explanation: Nandalal Bose led the art team; Beohar Rammanohar Sinha illuminated the Preamble page.

Core MCQ 32

The Constituent Assembly continued after 26 January 1950 as:

- A. The Supreme Court
- B. The Council of States
- C. The Election Commission
- D. The provisional Parliament

Answer: D. The provisional Parliament.

Explanation: It continued as the provisional Parliament until the first elected Parliament assembled in 1952.

Core MCQs 33-40

Core MCQ 33

How long did the Assembly take from first sitting to adoption?

- A. 3 years exactly
- B. 2 years, 6 months
- C. 2 years, 11 months, 18 days
- D. 11 months, 18 days

Answer: C. 2 years, 11 months, 18 days.

Explanation: The precise duration was 2 years, 11 months and 18 days.

Core MCQ 34

How many sessions did the Assembly hold?

- A. 11
- B. 9
- C. 14
- D. 12

Answer: A. 11.

Explanation: The standard Assembly account records 11 sessions.

Core MCQ 35

For how many days was the Draft Constitution debated?

- A. 141
- B. 165
- C. 2,473
- D. 114

Answer: D. 114.

Explanation: 114 is the plenary Draft-debate figure; 141 refers to Drafting Committee sitting days.

Core MCQ 36

What was the commonly recorded historical cost of the Assembly?

- A. About Rs 6.4 crore
- B. About Rs 14 lakh
- C. About Rs 64 lakh
- D. About Rs 114 lakh

Answer: C. About Rs 64 lakh.

Explanation: Use the historical nominal figure without converting it to present value unless a method is supplied.

Core MCQ 37

Why is 26 November observed as Samvidhan Divas (Constitution Day)?

- A. It is the date of signing
- B. It is the date of general commencement
- C. It is the date of constitutional adoption in 1949
- D. It is the date of first meeting

Answer: C. It is the date of constitutional adoption in 1949.

Explanation: The Constitution was adopted on 26 November 1949; Constitution Day is a statutory-executive commemoration, not a constitutional provision.

Core MCQ 38

How many members attended the first meeting amid the League boycott?

- A. 211
- B. 284
- C. 389
- D. 299

Answer: A. 211.

Explanation: 211 is attendance at the first sitting, not the Assembly's sanctioned strength.

Core MCQ 39

How many members signed the Constitution on 24 January 1950?

- A. 211
- B. 284
- C. 389
- D. 299

Answer: B. 284.

Explanation: 284 is the signatory count, distinct from the post-Partition strength of 299.

Core MCQ 40

Which statement correctly describes Constituent Assembly Debates?

- A. They are persuasive external aids, subordinate to enacted text and binding doctrine
- B. They bind courts exactly like constitutional text
- C. They are irrelevant to interpretation
- D. They override an enacted clause where a framer disagreed

Answer: A. They are persuasive external aids, subordinate to enacted text and binding doctrine.

Explanation: Debates may illuminate purpose, but no speech can enlarge or cut down the enacted Constitution.

Remedial MCQs 41-44

Remedial MCQ 41

Which number represents the Cabinet Mission's original planned strength?

- A. 299
- B. 211
- C. 389
- D. 284

Answer: C. 389.

Explanation: 389 is the design ceiling; the other figures answer different questions.

Remedial MCQ 42

Which pair served as Vice-Presidents of the Constituent Assembly?

- A. B.N. Rau and H.V.R. Iyengar
- B. H.C. Mukherjee and V.T. Krishnamachari
- C. G.V. Mavlankar and S.N. Mukerjee
- D. J.B. Kripalani and A.V. Thakkar

Answer: B. H.C. Mukherjee and V.T. Krishnamachari.

Explanation: The Vice-Presidents were H.C. Mukherjee and V.T. Krishnamachari.

Remedial MCQ 43

Which Article supplies the Constitution's short title?

- A. Article 393
- B. Article 395
- C. Article 394
- D. Article 392

Answer: A. Article 393.

Explanation: Article 393 states that the Constitution may be called the Constitution of India.

Remedial MCQ 44

What is the exam-safe treatment of the routed 2026 Q55?

- A. Omit the question because the key is provisional
- B. State the constitutional-text answer D and disclose that it conflicts with provisional key B
- C. Call all three statements correct
- D. Treat provisional key B as final

Answer: B. State the constitutional-text answer D and disclose that it conflicts with provisional key B.

Explanation: Articles 393-395 make all three negative statements false; the local provisional key lists B, so the conflict must be disclosed.

Remedial MCQs 45-48

Remedial MCQ 45

What should a representativeness answer establish first?

- A. A claim that the Assembly was directly elected
- B. Only the names of famous members
- C. The exact indirect and partly nominated selection chain
- D. Only the post-Partition strength

Answer: C. The exact indirect and partly nominated selection chain.

Explanation: Method must precede verdict: provincial legislators elected through PR-STV and princely rulers nominated.

Remedial MCQ 46

Which is the strongest reply to the claim that the Assembly remained non-sovereign?

- A. The Objectives Resolution was a British statute
- B. The Indian Independence Act 1947 removed external legal subordination
- C. It was always elected on adult franchise
- D. Congress dominance itself supplied sovereignty

Answer: B. The Indian Independence Act 1947 removed external legal subordination.

Explanation: The reply is period-specific and does not erase the restricted-franchise criticism.

Remedial MCQ 47

Which interpretive statement best captures original intent and a living Constitution?

- A. Historical intent is never relevant
- B. Framers' speeches always control
- C. Courts may ignore constitutional wording
- D. Debates may illuminate purpose, while text, structure and later doctrine govern

Answer: D. Debates may illuminate purpose, while text, structure and later doctrine govern.

Explanation: This formulation preserves historical usefulness without turning speeches into binding law.

Remedial MCQ 48

Which final verdict is analytically strongest?

- A. The Assembly was perfect
- B. The Assembly was legitimate only because of Congress
- C. The Assembly was wholly illegitimate
- D. The Assembly earned qualified legitimacy despite a constrained origin

Answer: D. The Assembly earned qualified legitimacy despite a constrained origin.

Explanation: A graded verdict integrates electoral limits, sovereignty, deliberation and democratic output.

PYQS AND ANSWER PRACTICE

PYQ source audit and status rule

- **2021 Q93:** exact official Set-A question held locally; local official key unavailable. The model answer is supported by the commenced Preamble and constitutional status on 26 January 1950.
- **2023 Q85:** exact official question held locally; local official key unavailable. The model answer follows the verified dates of Constitution Day and Drafting Committee appointment.
- **2024 Q61:** exact official Set-A question and official Set-A key held locally.
- **2026 Q55:** exact official Set-A question and a repository provisional key held locally. The provisional key says B, while Articles 393-395 support D. The text-supported solution is given with the conflict disclosed; it is not described as an officially final key.
- **Mains audit:** no direct Mains PYQ on the making process was found in the audited local GS-I/GS-II ledgers or papers. None is invented.

PYQ 1 - Prelims 2021 GS-I Q93

Official-paper wording: What was the exact constitutional status of India on 26th January, 1950?

- A. A Democratic Republic
- B. A Sovereign Democratic Republic
- C. A Sovereign Secular Democratic Republic
- D. Sovereign Socialist Secular Democratic Republic

Model answer: B - A Sovereign Democratic Republic.

Explanation: The Constitution commenced generally on 26 January 1950 and the original Preamble described India as a sovereign democratic republic. The words socialist and secular were inserted by the 42nd Amendment in 1976. Continued Commonwealth membership did not retain Dominion status.

Provenance/status: Exact official 2021 Set-A paper verified locally. Local official answer key is unavailable; this is a constitutional-text-supported answer, not an official-key claim. Confidence: high.

PYQ 2 - Prelims 2023 GS-I Q85

Official-paper wording: Statement I: Constitution Day is celebrated on 26 November every year to promote constitutional values among citizens. Statement II: On 26 November 1949, the Constituent Assembly set up a Drafting Committee under B.R. Ambedkar to prepare a Draft Constitution.

- A. Both statements are correct and Statement II explains Statement I
- B. Both statements are correct but Statement II does not explain Statement I
- C. Statement I is correct but Statement II is incorrect
- D. Statement I is incorrect but Statement II is correct

Model answer: C.

Explanation: Samvidhan Divas (Constitution Day) is observed on 26 November, the adoption date. The Drafting Committee was appointed on 29 August 1947, so Statement II is incorrect.

Provenance/status: Exact official 2023 paper verified locally. Local official key is unavailable; the answer is supported by verified institutional dates and is not presented as officially keyed. Confidence: high.

PYQ 3 - Prelims 2024 GS-I Q61

Official-paper wording: Who was the Provisional President of the Constituent Assembly before Dr Rajendra Prasad took over?

- A. C. Rajagopalachari
- B. Dr B.R. Ambedkar
- C. T.T. Krishnamachari
- D. Dr Sachchidananda Sinha

Official Set-A answer: D - Dr Sachchidananda Sinha.

Explanation: Sinha, the oldest member, presided temporarily at the first sitting under the French practice. Rajendra Prasad was later elected permanent President.

Provenance/status: Exact official 2024 Set-A question and official Set-A key verified locally.

PYQ 4 - Prelims 2026 GS-I Q55

Official-paper wording, normalised: Consider the following statements with reference to the Constitution of India:

1. No Article specifies that it will officially be called the Constitution of India.
 2. No Article specifies that the Indian Independence Act 1947 and Government of India Act 1935 stand repealed.
 3. No Article mentions 26 January 1950 as the date of commencement.
- A. There are two correct statements that include Statement 3
 - B. There is only one correct statement
 - C. All three statements are correct
 - D. There is no correct statement

Constitutional-text-supported model answer: D - there is no correct statement.

Explanation: Article 393 supplies the short title; Article 395 specifies the repeals; Article 394 specifies 26 January 1950 as the date of commencement for the remaining provisions. All three negative statements are therefore false.

Provenance/status: Exact official 2026 Set-A paper verified locally. The repository's Set-A answer key is explicitly provisional and lists B, which conflicts with Articles 393-395. This package does not present provisional B as an official final answer. The model answer D is based directly on constitutional text; final official-key status remains unresolved in the repository.

Original Mains practice - provenance control

The following six questions are **original practice**, not UPSC PYQs. Every model uses claim -> named evidence -> analysis -> qualification and ends with a mark-earning note.

Original Mains Model 1 - 10 marks

Question: Assess the role of the Objectives Resolution in the making of the Constitution. Answer in 150 words.

Demand: Explain function and significance, not merely list its clauses.

Model answer: The Objectives Resolution was the Assembly's value framework before the constitutional machinery was finalised. Nehru introduced it on 13 December 1946 and the Assembly adopted it on 22 January 1947. It located authority in the people, envisaged an independent sovereign republic, and committed the future order to justice, equality, freedom, safeguards for minorities and tribal or backward areas, territorial integrity and world peace.

Its importance was institutional. Subject committees and the Drafting Committee could disagree about federal, executive or rights mechanisms, but they worked within a publicly declared normative horizon. Its modified form became the Preamble, giving continuity between nationalist constitutional aspiration and the enacted Constitution. The Resolution was not itself the final constitutional text: its language was modified, and later doctrine must be grounded in the Preamble and operative provisions. It was therefore the value bridge from political freedom to constitutional identity.

Why this earns marks: It gives dates, named value content, causal process significance and a precise limitation.

Original Mains Model 2 - 10 marks

Question: Differentiate the role of B.N. Rau from that of the Drafting Committee in Indian constitution-making. Answer in 150 words.

Demand: Compare functions and preserve the Assembly's final authority.

Model answer: B.N. Rau and the Drafting Committee occupied successive but distinct stages. As Constitutional Adviser, Rau organised comparative research, advised committees and prepared an initial adviser draft in 1947. His work widened the menu of constitutional techniques and converted committee materials into a preliminary legal architecture.

The seven-member Drafting Committee, appointed on 29 August 1947 under B.R. Ambedkar, scrutinised that material, reconciled committee decisions and prepared the Draft Constitution published in February 1948 and revised in October 1948. Ambedkar then introduced and defended the Draft in the Assembly. S.N. Mukerjee supplied technical legislative drafting.

Neither Rau nor the Committee possessed final constituent authority. The plenary Assembly debated clauses, moved amendments and adopted the Constitution on 26 November 1949. Rau prepared and advised; the Committee legally integrated and piloted; the Assembly authorised. This differentiation credits Ambedkar's exceptional leadership without reducing a distributed process to solitary authorship.

Why this earns marks: It compares role, chronology, named evidence, institutional boundaries and final authorship.

Original Mains Model 3 - 15 marks

Question: Critically examine the representative and sovereign character of the Constituent Assembly. Answer in 250 words.

Demand: Evaluate two distinct tests across time and end with a graded verdict.

Model answer: The Assembly's representative and sovereign character cannot be answered with one label. Under the Cabinet Mission scheme, its planned strength was 389: 296 British Indian and 93 princely-state seats. Provincial representatives were indirectly elected by community members of provincial assemblies through proportional representation by single transferable vote; princes nominated state representatives. The underlying provincial franchise was restricted. Congress won 208 of 296 seats, the Muslim League won 73, and the League boycotted the first sitting. These facts establish a real electoral and political deficit.

Representation nevertheless had a deliberative dimension. The Assembly included religious minorities, Scheduled Castes, tribal members and women; specialist committees created channels on rights, minorities and excluded areas. Congress itself contained competing ideological and provincial tendencies. The prospective democratic answer was stronger still: universal adult franchise made the polity far more representative than the founding body's electorate.

Sovereignty changed over time. The Cabinet Mission and British legal framework shaped the origin, so the criticism had force in December 1946. The Indian Independence Act 1947, however, removed external legal subordination, empowered the Assembly to frame any Constitution and repeal British statutes, and added legislative capacity.

The Assembly was therefore not fully representative by modern electoral standards and was not equally sovereign at every stage. Yet post-1947 legal sovereignty, plural deliberation and universal-franchise output gave it qualified founding legitimacy.

Why this earns marks: It separates the two directives, periodises sovereignty, concedes defects and links evidence to a balanced verdict.

Original Mains Model 4 - 15 marks

Question: Explain how committee government strengthened the deliberative process of the Constituent Assembly. Answer in 250 words.

Demand: Show mechanism, evidence, benefit and limitation.

Model answer: Committee government converted a vast and conflict-ridden constitutional agenda into specialised, negotiable and draftable units. Nehru's Union Powers and Union Constitution Committees framed central architecture; Patel's Provincial Constitution and Advisory Committees linked federal design with rights, minority and tribal safeguards. The Kripalani, H.C. Mukherjee, Gopinath Bardoloi and A.V. Thakkar subcommittees deepened issue-specific scrutiny.

This architecture separated four functions. First, subject committees gathered evidence and narrowed choices. Second, B.N. Rau supplied comparative advice and an initial draft. Third, Ambedkar's Drafting Committee reconciled reports into coherent legal text. Fourth, the plenary Assembly publicly debated, amended and authorised that text. The movement between smaller committees, party forums, informal negotiation and plenary sessions reduced deadlock without eliminating dissent.

The mechanism strengthened deliberation in three ways: expertise improved precision; smaller forums made bargaining manageable; and plenary readings preserved public reasons and final authority. The cost was possible technocratic insulation and opacity in pre-plenary settlements, intensified by Congress dominance and unequal representation. Committee work was legitimate because it remained subordinate to the Assembly.

Thus, specialisation did not replace deliberation; it organised it. The durability of the final settlement arose from expert preparation joined to political negotiation and public constitutional authorisation.

Why this earns marks: It names committees, explains the production chain, analyses benefits and retains institutional limitations.

Original Mains Model 5 - 20 marks

Question: Indian constitution-making represented both continuity and rupture. Discuss. Answer in 300 words.

Demand: Analyse both sides through institutions, legitimacy and social purpose.

Model answer: Indian constitution-making was a controlled constitutional transformation: it retained machinery necessary for governability while replacing colonial legitimacy with republican popular sovereignty.

Continuity: Administrative offices, legislative lists, public services, courts and drafting techniques drew heavily on the Government of India Act 1935. A strong executive, emergency instruments and centralising devices reflected inherited state-capacity concerns intensified by Partition and integration. Staged commencement under Article 394 and repeal under Article 395 also show a legally managed transition rather than an institutional vacuum.

Rupture: The Objectives Resolution located authority in the people rather than Westminster. The Constitution created a sovereign democratic republic, parliamentary responsibility under a supreme written Constitution, enforceable Fundamental Rights, judicial review and Directive Principles. Universal adult franchise established equal political membership from the beginning, far beyond the restricted electorate that indirectly produced the Assembly. Equality and the abolition of untouchability converted political independence into a project of social transformation.

Synthesis: Borrowed and inherited devices changed function when placed under popular sovereignty, rights and electoral accountability. Federal lists no longer served imperial supervision alone; they structured a constitutional Union. Bureaucratic continuity enabled day-one administration, while democratic rupture changed to whom that administration was answerable.

The transformation was incomplete. Inherited institutions carried centralising and bureaucratic habits, and constitutional promises did not instantly erase social hierarchy. Yet a complete administrative reset would have endangered governability.

The founding achievement was therefore controlled rupture: enough continuity to preserve state capacity, but enough democratic and social transformation to change the source, limits and purposes of public power.

Why this earns marks: It uses constitutional provisions and institutional examples, explains altered function, qualifies transformation and answers both sides of the directive.

Original Mains Model 6 - 20 marks

Question: Evaluate the legitimacy of the Constituent Assembly as India's constitution-making body. Answer in 300 words.

Demand: Build a criterion-based evaluation rather than praise or rejection.

Model answer: The Assembly's legitimacy was neither a pure popular mandate nor a British gift. It was progressively built through legal sovereignty, plural deliberation and democratic constitutional output.

Origin deficit: The Cabinet Mission designed a 389-member body. Provincial representatives were indirectly elected through restricted-franchise provincial assemblies and princely rulers nominated their representatives. Congress won 208 of 296 electoral seats; the League boycott and Partition reduced plural participation. These facts weaken a claim of full electoral representativeness.

Sovereignty: The objection that the Assembly was legally subordinate had force at its first sitting. The Indian Independence Act 1947 then empowered it to frame any Constitution, repeal British statutes and legislate for the Dominion. Sovereignty must therefore be periodised.

Deliberative legitimacy: Major committees, rights and minority subcommittees, comparative advice by B.N. Rau, legal integration by the Drafting Committee and clause-by-clause plenary readings created institutional reasons rather than simple acclamation. Women, Scheduled Caste, tribal and minority members participated substantively, though not proportionately.

Democratic output: The Constitution located authority in the people, established universal adult franchise, rights, representative government and constitutional remedies. The Assembly thereby created a more democratic polity than the electoral system that created it.

Residual limits: Congress agenda control, lawyer-politician predominance, social imbalance, princely nomination and the League's absence cannot be erased by later success. Deliberation is not a substitute for direct election; it is an additional source of legitimacy under the constraints of 1946-49.

The Assembly was thus imperfect but not illegitimate. It earned qualified founding legitimacy by converting a constrained origin into a sovereign, deliberative and universally democratic constitutional order.

Why this earns marks: It evaluates through explicit criteria, uses named institutional evidence, concedes residual deficits and reaches a graded verdict.